

Before the Hon'ble Court of Special Judge-II, CBI, Ernakulam.

FIRST INFORMATION REPORT

(Under Section 173 BNSS)

1. **District:** Cochin **PS:** ACB Cochin
Year: 2025
FIR No: RC0332025A0007 **Date:** 12/09/2025

2. **Acts & Sections:**

Acts	Sections	R/W Section
PC Act-1988	13(2) r/w 13(1)(c) and 13(1)(d)	
IPC	120-B	r/w 406 , 409 , 420 , 468 and 471

3. **Suspected offences:** Forgery,Cheating,Criminal Breach of Trust,Criminal Misconduct

(a) **Occurrence of offence:**

Day: **Time Period:**
From Date: 2015 **To Date:** 2017

(b) **Information Received at PS:**

Date: 06/03/2023

(c) **General Diary Reference:**

Entry No.: 05
Date: 12/09/2025 **Time:** 11:22:13

4. **Type of Information:** Written

5. **Place of Occurrence:** Bank of India, Ernakulam Branch

(a) **Direction & distance from PS:** 3.5 Km West

Beat No.:

(b) **Address:**

Plot No.: ALLIANCE RESIDENCY SHANMUGHAM **Area:**
ROAD ERNAKULAM
City: **Pin:** 682031
State: Kerala **District:** Ernakulam

(c) **In case, outside the limit of this Police Station, then**

Name of PS: **District:**

6. **Complainant / Informant:**

Complainant 1

(a) **Name:** Mr. Pramod Kumar TB

(b) **Father's/Husband's Name:**

(c) **Date/Year of Birth:**

(d) **Nationality:** INDIAN

(e) **Passport:**

Passport No.	Date Of Issue	Place Of Issue
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(f) **Occupation:** Chief Manager

(g) **Address:**

Plot No	Area	City	State	District	Pin
1st Floor, Alliance Residency,	Shanmugham Road,	Cochin	Kerala	Ernakulam	682031

7. **Details of known/suspected/unknown accused with full particulars:**

Accused 1**Name:** Mr.Kiran P P(2)**Address:**

Pallath House, Perinjanam, Ponmanikudam,, Kodungaloor, Thrissur, Kerala, 680686

Accused 2**Name:** Mr.Ajay Mohan(3)**Address:**

Alunkal Thadathil, Vellavoor, Manimal, Kottayam, Kerala, 686541

Accused 3**Name:** Mr.Deepak Dharmapalan(4)**Address:**

Eattath House, Chakkarappadam, Perinjanam, Kodungaloor, Thrissur, Kerala, 680686

Accused 4**Name:** Mr.Agustine Chandy(5)**Address:**PNRA 43, Pongumoodu,, Medical College-PO, Trivandrum, Thiruvananthapuram, Kerala, 695011
1314, Vallomkot, Elamkulam,, Uloor, Thiruvananthapuram, Kerala, 695011**Accused 5****Name:** Mr.Kunjikrishnan P(6)**Address:**

Unmesh Bhavan,, Kuthuparamba, Koothuparamba, Kannur, Kerala, 670643

Accused 6**Name:** UnknownUnknown public servants (6)**Address:****Accused 7****Name:** M/s.Catrix Luminants & Solar System**Address:**

62/F, Sehba Square, CUSAT Road, Kalamassery, Cochin, Ernakulam, Kerala, 683104

8. Reasons for delay in reporting by the complainant/informant:**9. Particulars of properties stolen:**

Item Name	Age of Property	Estimated Value (in INR)
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10. Total value of property stolen:**11. Inquest Report/U.D. Case No., if any:****12. First information contents:**

Central Bureau of Investigation. Anti-Corruption Branch, Cochin has received a complaint dated 12.1.2023 from Shri Pramod Kumar T.B. Chief Manager, Bank of India, Ernakulam Branch, Ernakulam against M/s. Catrx Luminants & Solar Systems, Kalamassery, Cochin for taking legal action. Consequently necessary consent under Delhi Police establishment Act has been obtained.

It is alleged that Shri Kiran P.P., Managing Partner of M/s. Catrx Luminants & Solar Systems, along with other partners Shri Ajay Mohani, Shri Deepak Dharmapalan, and Shri Augustine Chandy, entered into a criminal conspiracy with one another and unknown others to cheat Bank of India, Ernakulam Branch in the matter of availing credit facilities worth Rs 7.5 Crore. In furtherance of the said conspiracy, the firm submitted a loan application during the year 2015 projecting its business as the assembly/manufacture of LED lights and solar products under the Small Enterprise category and availed credit facilities comprising a Cash Credit limit of ₹4.00 Crores and a Term Loan of ₹3.50 Crores by concocting books of accounts and submitted fabricated invoices with dishonest intent to cause wrongful loss to the Bank and corresponding wrongful gain to themselves. The Cash Credit facility for working capital was secured by hypothecation of stocks and book debts, while the Term Loan was secured by a charge on the entire assets of the firm and an equitable mortgage on the leasehold rights of the land and building where the plant and machinery were to be installed, in addition to collateral securities provided by way of equitable mortgage of properties belonging to the guarantor, Shri Kunhikrishnan P. Later on the accounts slipped into Non-Performing Asset (NPA) status on 30.09.2017, with total outstanding dues, including interest, standing at ₹13.09 Crores as on 31.12.2022.

The internal enquiry conducted by the Bank also confirmed that M/s. Catrx Luminants & Solar Systems, led by Mr. Kiran P.P., had concealed multiple banking exposures, many of which had already slipped into NPA status, fabricated invoices, and diverted loan proceeds through circular and accommodative transactions. Funds sanctioned for the purchase of machinery were fraudulently routed to fictitious or related entities such as M/s. Prakash Engineering and M/s. Fly on Cables, while payments made to suppliers like M/s. Cabletron Systems were immediately transferred back to create a false impression of capital infusion. It is further revealed that bogus TIN numbers, non-existent suppliers, and removal of machinery without the Bank's consent, thereby indicating that the assets shown in records were never actually procured. These findings clearly establish diversion and siphoning of funds, misrepresentation, and fraudulent intent on the part of the borrower, amounting to criminal breach of trust, cheating, forgery, and criminal conspiracy. Consequently, the account was duly classified as fraud on 30.03.2022

It is alleged in the complaint that the borrower, guarantors, and related parties, acting in furtherance of criminal conspiracy with one another, with dishonest intention of causing wrongful loss to the tune of Rs 13.09 Crores to lending banks and corresponding wrongful gain to themselves. Thereby they have fraudulently committed acts of cheating, forgery for the purpose of cheating, forged documents used as genuine and criminal breach of trust which are liable U/S 120B R/w 406, 409, 420, 468 & 471 of IPC and Section 13(2) r/w 13(1)(c) & 13(1)(d) of PC Act 1988. It is further required the investigation to unearth the roles of Chartered Accountants, Statutory Auditors, Stock Auditors, Empanelled Valuers, Unknown Public Servants, and other connected persons. Hence this FIR

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:

(1) Registered the case and took up the investigation: Yes

OR

(2) Directed

Name of IO: Sanal S
Rank: INSPECTOR (ACB Cochin)
No: 188468
to take the investigation

OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:

District:

on point of jurisdiction.

Attached documents:

Document name

COMPLAINT

CONSENT U S 6 DSPE ACT

CONSENT U S 5 DSPE ACT

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant / informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

Signature of
Officer
in-charge
Police
Station

Name:

Rank:

15. Date and time of dispatch to the Court:

12. 09. 2025

12.00 hr.

P. Renuka Devi
12/9/25
पि. रेणुकादेवी भा.पु.से.
P. RENUKADEVI I. P. S.
पुलिस उपमहानरीक्षक
Dy. Inspector General of Police
शाखा प्रमुख/ Head of Branch
केंद्रीय जांच ब्यूरो/एसीब, कोचीन
CBI / ACB, COCHIN

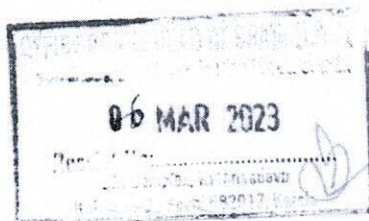
SECRET

	CENTRAL BUREAU OF INVESTIGATION Bank Complaint Cell 5 th Floor, CBI Head Quarters, 5-B, CGO Complex, Lodhi Road, New Delhi - 110003
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Sub:- **Forwarding of Bank Fraud Complaint received from Bank of India against M/s Catrix Luminants & Solar System's O/o.- 62/F, Sehba Square, CUSAT Road, Kalamassery, Cochin involving amount of Rs 7.28 Crores - reg.**

Please refer to Policy Division OM No. 21 / 24 / 2015 / 3169 dated 18.09.2019.

2. Pursuant to the aforesaid OM dated 18.09.2019, HoZ, BSFZ, New Delhi has assigned the subject complaint to **HoB, CBI, ACB, Cochin**.
3. Accordingly, please find enclosed herewith bank fraud complaint in original received from Shri Pramod T B, Chief Manager, Bank of India, Ernakulam vide letter No. EKM / ADV / TBP / 2022 -23 / 103 dated 12.01.2023 against **M/s Catrix Luminants & Solar System's O/o.- 62/F, Sehba Square, CUSAT Road, Kalamassery, Cochin** for taking further necessary action at your end.
4. It may please be noted that allegations against 'Unknown Public Servant' are mentioned in the instant complaint.
5. BCC, CBI, New Delhi has not conducted any enquiry in this matter.



(G. Bairwa)
Supdt. of Police
Bank Complaint Cell, CBI, New Delhi

Encl: (As above)

HoB / CBI / ACB / Cochin

CBI ID No. 1165 / BCC / 2023 / E / 0023

Dated 28 / 02 / 2023

Copy to:-

- i. The JD (P), CBI, CGO Complex, New Delhi for kind information please.
- ii. The HoZ, CBI, Chennai Zone, Chennai for kind information please.

Dy. No. 63(D) / HOZ/BSFZ
Date 16/01/2023

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Bank of India



Relationships beyond banking

Ernakulam Branch, 1st Floor, Alliance Residency, Shanmugham Road, Ernakulam 682031

Ph: 0484-2363070, 2354508; e mail: Ernakulam.Kerala@bankofindia.co.in

Ref. No. EKM/ADV/TBP/2022-23/103

Date 12.01.2023

To,
The Head of Zone,
Central Bureau of Investigation (CBI),
Banking Security Fraud Zone (BS & F Zone),
5-B, 10TH Floor, A-Wing,
CGO Complex, Lodhi Road,
New Delhi -110 003

Dy.No. 109
SP/Bank Complaint Cell
Date 18/01/23

Dear Sir,

Sub: Complaint regarding fraud committed by the Partnership firm and its Partners:

M/s. Catrux Luminants & Solar Systems and its Partners

Partners: Mr. Kiran. P. P (Managing Partner), Mr. Ajay Mohan,
Mr. Deepak Dharmapalan and Mr. Augustine Chandy

With reference to the captioned subject, I, Pramod T B working as Chief Manager, Ernakulam Branch at Marine Drive Ernakulam, duly authorised by the Bank and on behalf of Bank of India, hereby lodge this complaint against the above persons on the prescribed format enclosed herewith. It is also submitted that we had earlier submitted a complaint Ref. No. EKM/TBP/2022-23/21 dtd 09.05.2022 to your good office. The said complaint was returned by Shri G. Bairwa, SP, BCC, CBI, New Delhi vide your letter Ref. No. CBI ID No 3938/BCC/2022/E/0294 dated 08.07.2022 observing that date of declaration of account as fraud and allegations against unknown public servants in the complaint are not mentioned in the complaint.

Further we have again submitted the complaint vide Ref. No. EKM/TBP/2022-23/21 dtd 09.05.2022. The said complaint was returned by Shri G. Bairwa, SP, BCC, CBI, New Delhi vide your letter Ref. No. CBI ID No. 7428/BCC/2022/E/0582 dated 25.11.2022 observing that in case of uncertainty about the criminality on the part of Bank officials, Bank has not mentioned allegations against 'unknown public servants' in the complaint. We have now incorporated the said detail also in the enclosed complaint.

We request you to kindly consider our complaint and take necessary action against the accused persons as per the provisions under the Criminal Law.

Yours faithfully,

PRAMOD T B CHIEF MANAGER

(Pramod T B)
Chief Manager
Ernakulam Branch

Encl: Complaint in prescribed format



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Ref. No. EKM/ADV/TBP/2022-23/102

Date: 12.01.2023

To,

The Head of Zone,
Central Bureau of Investigation (CBI),
Banking Security Fraud Zone (BS & F Zone),
5-B, 10TH Floor, A-Wing,
CGO Complex, Lodhi Road,
New Delhi -110 003

Sub: Information furnished U/s 154(1) of Cr. PC for registering First Information Report pertaining to fraud perpetrated by M/s. Catrux Luminants & Solar Systems and its Partners, Associates and other unknown public servants with intent to defraud Bank of India / public money to the tune of Rs.7.28 Cr which is the ledger outstanding in the books of accounts of the Bank as on 31.12.2022 together with uncharged interest thereon and the Contractual dues is Rs.13.09 cr and interest w.e.f 01.01.2023.

Sl. No.	Particulars	Details
1	Name of Bank	Bank of India, a body corporate constituted under the Banking Companies (Acquisition & Transfer of undertakings Act 1970, having Head Office at Star House, G Block Plot No. C-5, Bandra Kurla Complex, Bandra (East), Mumbai 400 051
2	Name of Branch	Bank Of India , Ernakulam Branch 1 st Floor, Alliance Residency, Shanmugham Road Marine Drive Ernakulam Telephone No.0484- 2382632, 2354508

Classification: Internal



Ernakulam Branch, 1st Floor, Alliance Residency, Shanmugham Road, Ernakulam 682031

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3	Date of lodging complaint	12.01.2023
4	Time, date and place of occurrence of fraud	Date of Declaration of Fraud: 30.03.2022 Place of occurrence of Fraud: Bank of India , Mid Corporate Branch, (erstwhile, presently the said Branch is closed and the account is transferred to Bank of India, Ernakulam Branch)
5	Name of the complainant	Pramod.T.B S/o. Shri.Bhashyam.T.N, aged 49 years working as Chief Manager, Bank of India, Ernakulam Branch
6	Brief Details of fraud, sanction and security, NPA etc.	M/s. Catrux Luminants & Solar Systems (PAN) is a partnership firm constituted on 05.03.2014 having it's office at 62/F, Sehba Square, CUSAT Road, Kalamassery , Cochin-683104, represented by it's partners Mr.Kiran.P.P(Managing Partner), Mr.Ajay Mohan, Mr.Deepak Dharmapalan and Mr.Augustine Chandy. It was a new SSI Unit promoted by the above partners who are technically qualified and experienced entrepreneurs.The said firm submitted an application for loan along with Project report, Projected Financials of the Firm for purchase of Plant & Machinery and working capital requirement in the name of MIs Catrux Luminants & Solar Systems.The proposed activity of the firm was assemble/manufacture of LED lights and solar products (small enterprises). The proposed activity would be carried out in a leased building in an area of 5000 sq.ft. The firm entered into a lease agreement with M/s.Hindustan Rubber Products, Thrikkakkara, Ernakulam Dist. for lease of 5000 sq.ft building with Mr.Abdul Azeez, Thrikkakkara, for lease of 13000 sq.ft of

Classification: Internal





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office space. The lease is registered for 12 years period. At the request of the partners, the firm was sanctioned Working capital limit of Rs.4 Cr and Term Loan for Rs.3.50 Cr and aggregate amount of Rs.7.50 cr by DLCC Ref.No.DM (S):C-CPC:DB:2015-16:18 dtd.29.06.2015 as per the recommendation of our erstwhile MCB Ernakulam Branch. Since, the said Branch is closed, the said account is transferred to our Ernakulam Branch.

BANKING ARRANGEMENT:

The following persons are the partners/borrowers and guarantor in the account **M/s.Catrix Luminants and Solar Systems** wherein the fraud had taken place in the account:-

Sr No	Name of/ Partners	PAN	Address of the Partners
1	Mr.Kiran.P.P	BFYPK2085P Passport No- J0889595	Pallath House , Perinjanam Ponmanikudam, Kodungallor- 680686
2	Mr.Ajay Mohan	AWJPM6465 G Passport No- R7355978	Alunkal Thadathil, Vellavoor 686541
3	Mr.Deepak Dharmapalan	ARPPD3421J	Eattath House Chakkarappadam Perinjanam, Kodungaloor 680686



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		4	Mr. Augustine Chandy	ABZPC4869P Passport No- A0997879	i) PNRA 43 Pongumoodu Medical College PO Trivandrum 695011 *ii) 2, Redwood Place Beaconsfield Bucks , United Kingdom *iii) 1314, Vallomkot, Elamkulam, Ulloor, Thiruvananthapura m, Kerala -695011 * as available in CIBIL report
		4. The following is the guarantor/mortgagor in the borrowing account of M/s. Catrix Luminants & Solar Systems:-			
		Sr. No.	Name of Guarantors	PAN	Address of guarantor





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		1	Mr.Kunjikrishnan.P	AEZPK4647C	Unmesh Bhavan Kuthuparamba Kannur- 670643
					The firm was sanctioned Working capital limit of Rs.4 Cr secured by the Exclusive charge by way of hypothecation of stocks & book debts of the firm and Term loan for an amount of Rs.3.5 cr, secured by exclusive charge on the entire block assets of the firm and equitable mortgage on the lease hold rights of land and building where the plant and machinery is situated ie, land & building at 25/98, Changampuzha Nagar, Kalamassery South. The said loans are collaterally secured by the Equitable Mortgage of the properties belonging to the guarantor Mr.P.Kunhikrishnan:- i) 69.18 cents of Vacant Land in Re Sy No 45/2B of Koothuparamba Village Thalassery Taluk Kannur district owned by Sri Kunjikrishnan. P ii) 26.44 cents of Land and Residential building in Re Sy No 45/2B of Koothuparamba Village Thalassery Taluk Kannur district owned by Sri Kunjikrishnan P.



The present position of the accounts is as under:-

Rs. In Cr				
Nature of facility	Sanct ioned Limit	A/c No.	Outst andin g	Total dues as on 31.12.2022
Cash Credit	4.00	851830110000011	4.02	7.31
Term Loan	3.50*	851870210000001	3.26	5.78
			7.28	13.09

*the limit (in Term Loan) at the time of last review was Rs.3.21 Cr.

6. The details of securities available in the account of M/s.Catrix Luminants & Solar Systems is as under:-

Security details:

Nature of facility	Principal	Collateral for all facilities	Details of Security
Cash Credit	Exclusive charge by way of hypothecation of stocks, machineries & book debts of the firm.	Equitable mortgage of property belonging to:- 1)Guarant or	i)EQM of property 69.18 cents of Vacant Land in Re Sy No 45/2B of Koothuparamba Village, Thalassery

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		Mr.Kunhik rishnan.P	Taluk Kannur district.
Term Loan	Exclusive charge on the entire block assets of the firm		ii) 26.44 cents of Land and Residential building in Re Sy No 45/2B of Koothuparamba Village Thalassery Taluk Kannur district.
	EQM on the lease hold rights of land and building where the plant and machinery is situated ie, land & building at 25/98,Changampu zha Nagar , Kalamassery South		

Securities charged to Banks are as follows:

#	Property Type	Distress Value (Rs. in Cr.)	Valuation
I	1)Primary Security		
A	Hypothecation of Stocks Exclusive charge by way of hypothecation of stocks, machineries & book debts of the firm.	N/A	N/A
	Exclusive charge on the entire block assets of the firm	NA	NA

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	EQM on the lease hold rights of land and building where the plant and machinery is situated ie, land & building at 25/98,Changampuzha Nagar , Kalamassery South		
	Collateral Security		
1	1)EQM of property 69.18 cents of Vacant Land in Re Sy No 45/2B of Koothuparamba Village Thalassery Taluk Kannur district	4.00	Date of valuation 23.11.2021
2	ii) 26.44 cents of Land and Residential building in Re Sy No 45/2B of Koothuparamba Village Thalassery Taluk Kannur district.	1.45	Date of valuation 23.11.2021

It is transpired that one of the partners Mr. Augustine Chandy is a common partner in M/s. Grand Constructions (which is also an NPA account w.e.f.31.12.2017) and M/s. Catrux Luminants & Solar Systems. The said account was also classified as NPA and bank has taken action under SARFAESI Act and suit filed before the DRT and both actions are pending. M/s. Catrux Luminants & Solar Systems was classified as NPA on 30.09.2017 and SARFAESI notice was issued to the

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		borrowers and guarantors on 03.10.2017 physical possession of the secured assets are taken by the Bank and the properties were put for sale by e-auction but there were no bidders. Later as per the CRILIC data of the firm , it transpired that the firm has also availed similar credit facilities from South Indian Bank, Ayyanthole Branch and the same facilities have been classified as NPA as on 30.06.2017. The Branch received letter from South Indian Bank stating that the firm has availed similar facilities from them and the status of the account is substandard as on date.
		7. Recovery action: DRT Suit (OA No. 112/2021): Suit is filed before DRT-2, Ernakulam on 27.04.2018 for Rs.799.94 lakhs. The case is posted to 25.04.2023 for hearing. SARFAESI: Action taken u/s 13(2) on 03.10.2017 and symbolic possession of the secured assets was taken on 18.01.2018. The physical possession of the properties was taken on 16.10.2019. In the meantime, due to order of the Hon'ble High Court of Kerala in suo motu WP (C) 9400/2020 and in WP (C) 11316/2021, the Bank could not put the said properties for sale under the SARFAESI Act. However, thereafter the said properties are put for sale on 25.05.2022 with reserve price

Rs.412.75 lakhs and Rs.153.63 lakhs again the property was put for sale on 27.06.2022, 25.07.2022, 25.08.2022 , 28.10.2022 and all e-auctions failed due to want of bidders.

Major Findings in the Internal Investigation conducted by the Vigilance Dept. of the Bank:-

The firm had removed all the machineries without Bank's permission, as reported in one of the inspection report. In addition to the limits availed from Bank of India, Ernakulam MCB and South Indian Bank Ltd., Ayyanthole Branch, it is alleged that Mr. Kiran.P.P. is also enjoying credit facilities with Canara Bank, ARM at Ernakulam South Jn. Canara Bank verbally confirmed that Mr. Kiran P. P. had availed loans with them during the period 2015-16 and the account/s have slipped into NPA in the year 2017. However, Canara Bank has not given any written communication sharing the said information eventhough the same was sought by us in writing.

The main plant and machinery was proposed to be purchased from M/s.GV Optic Solution (GV), M/s.Bright Cell Electronics & Communications (Bright) vide the sanctioned proposal dtd.30.06.2015.

As per the internal investigation conducted by the vigilance Dept. of the Bank, it transpired that the borrowers have resorted

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	to diversion of funds which were remitted to the supplier M/s Cabletron Systems wherein the proprietor Mr.Dharman. E.K. confirmed vide email dated 18.02.2022, that the funds received from Bank of India was transferred to the account of M/s Prakash Engineering. It is to be noted that Mr. Deepak Dharmapalan (partner of the firm in M/s.Catrix Luminants & Solar Systems) is the proprietor of the firm M/s Prakash Engineering. Mr.Dharman had also shared his firm's TIN No.32080595325 and that the firm M/s.Catrix Luminants & Solar Systems had cheated him. It is also alleged that the amount received into the current account of the firm was accommodative in nature just to show that capital has been infused by the borrower / firm. M/s.G.V.Sukumar. Chartered accountants have certified that M/s.Catrix Luminants & Solar Systems have infused Rs.1,70,02,700/- as capital till 20.11.2015 vide their certificate dtd.21.11.2015 .The major portion of capital infusion is towards advance for suppliers for Plant & machineries amounting to Rs.1,60,50,000/-.The remaining amount is towards security deposit of factory rent at Kalamassery, Electricity Deposit and preliminary & pre-operative expenses. Some payments were made to the suppliers from the current account of the firm bearing A/c.No.851820110000041 of which Rs.25 lakhs was remitted to M/s.Cabletron Systems on 28.10.2015 and Rs.19 lakhs and Rs.15 lakhs was remitted to M/s.GV Optic Solution on 28.10.2015 and 29.10.2015 totalling Rs.59,00,000/-.These amounts were remitted from the inward remittances received in
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Classification: Internal



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		the current account totaling Rs.68,99,937/-from M/s.Digital Sign Networks (Rs.59 lakhs) on 27.10.2015, 28.10.2015 and 29.10.2015 and from M/s.HRJ Refrigeration (Rs.9.99 lakhs) on 23.11.2015.It is transpired from the statement of account of M/s.Cabletron Systems with the Federal Bank that the funds received by them on 28.10.2015 from BOI, Ernakulam Branch amounting to Rs.25 lakhs was immediately transferred on the same day by way of RTGS to M/s.Digital Sign Networks .Thus this transaction is only a camouflaged entry shown by the firm only to reflect that fund infusion has taken place. The real fact is that the amount has been transferred to the account from where it has been received. Hence the transaction is found to be accommodative in nature. A letter dated 22.06.2015 received from M/s.Catrix Luminants & Solar Systems duly signed by Mr.Kiran.P.P reveals that M/s.Digital Sign Networks is a unit of Kerala Cable Federation providing digital signal distribution and Mr.Kiran.P.P is the secretary of Kerala Cable Federation (Thrissur Dist.). In the inspection conducted by the bank officials, it is transpired that, the firm has eroded machineries without Bank's permission, which shows that the firm has cheated the Bank. It appears that the firm has not purchased the machinery as shown on records. Moreover, from the Term Loan, Rs.30.22 lacs disbursed to a proprietary concern ie, M/s.Fly on Cables owned by the proprietor Mr.Kiran.P.P (who is the managing Partner of M/s.Catrix Luminants & Solar Systems), which shows the
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intention of the borrowers to cheat the Bank. It is noticed that an amount of Rs.30,21,750 was disbursed from Term Loan account and payment made to M/s.Prakash Engineering on 25.11.2015 where Mr.Deepak Dharmapalan is the proprietor of the said firm and also is standing as a partner/guarantor in M/s.Catrix Luminants & Solar Systems too. Upon search of TIN Nos. of suppliers (as mentioned in invoices) from Kerala Commercial Tax website (KVAT :TIN checking (Kerala.gov.in) , it is revealed that TIN No.32080995412 of the supplier M/s.Mactone Steel Industries and TIN No.32080593197 of the supplier M/s.Cabletron Systems does not exist in the said website .It appears that the TIN numbers in the invoices submitted by the suppliers are fabricated .It is also noticed that there is no mention of TIN number in the quotations submitted by these suppliers. Mr.Dharman , proprietor of M/s Cabletron Systems vide his e-mail dtd.18.02.2002 confirmed to the Bank's vigilance Dept that one quotation signed by him was issued and invoice was not issued by them. He further confirmed having received an amount of Rs.1,10,15,200/- from Bank Of India, Ernakulam Branch into his firm's account on 25.11.2015.He stated that the said amount was remitted by way of RTGS on the next day ie, on 26.11.2015 to M/s.Prakash Engineering at the request of M/s.Catrix Luminants and Solar Systems. He had also quoted his firm's correct TIN number which is 32080995325 and stated that M/s.Catrix Luminants and Solar Systems had cheated them. The said TIN is matching in the website of Kerala Commercial



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	Taxes. The supplier M/s.Cabletron Systems had not made any delivery of material/goods worth Rs.1.10 cr . It is also noticed that registration status of TIN 32081068978 pertaining to M/s.Prakash Engineering & Technology was subsequently cancelled. It is clearly evident that the borrowers have cheated the Bank by producing fake quotations and invoices and diverted the funds. In view of the above, the borrowers have cheated the Bank by not utilizing the funds for the purpose for which the loan was sanctioned and instead diverted the funds. They have also concealed the information in respect of credit exposure they were enjoying with other Banks. The aforesaid acts of the borrowers amount to criminal breach of trust punishable under Section 409 of the Indian penal Code and the said acts resulted in grave financial misconduct which amounts to cheating punishable under Section 420 IPC read with Section 34 of IPC. From the above, it is clear that the borrowers have acted in a fraudulent way to cheat the Bank and it is a clear cut case of siphoning of funds. The borrowers have diverted & siphoned off funds borrowed from bank and utilized the same for the purpose other than for which they had availed the loan facility. Hence the account is recommended for treating as Fraud and the competent authority of the Bank declared the account as fraud on 30.03.2022. The aforesaid acts of the borrower/s is a criminal breach of trust punishable under Section 409 of the Indian penal Code and also offence under S.467 IPC and S.468 IPC forgery of valuable
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Relationships beyond banking

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security and forgery for cheating and the said acts resulted in grave financial misconduct which amounts to cheating punishable under Section 420 IPC read with Section 120-B IPC and 34 of IPC.

Utilization of funds/End use of funds-The following are the summary of funds transferred from the partners of M/s.Catrix Luminants & Solar System to their related parties :-

#	Beneficiary	Aprx. Amount (Rs. In Lakh)	Date of transfer
1	M/s.Bright Cell Electronics & Communications	Rs.58.99	25.11.2015
2	M/s Cabletron Systems	Rs.110.15	25.11.2015
3	M/s.G.V.Optic Solution	Rs.141.61	25.11.2015
4	M/s.Prakash Engineering & Technology	Rs.30.22	25.11.2015
5	M/s.Fly on Cables	Rs.30.22	
6	Mactone Steel Industries	Rs.6.00	25.11.2015
	Total	377.19	



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7	Name of the accused	M/s.Catrix Luminants and Solar Systems through its partners namely partners Mr.Kiran.P.P(Managing Partner), Mr.Ajay Mohan, Mr.Deepak Dharmapalan and Mr.Augustine Chandy
8	Role of accused person including the role of public servant	1. Diversion of Funds 2. Manipulation of books of accounts 3. Submission of fabricated invoice to the Bank by the borrowers All the above mentioned acts have been done with the intention to cause loss to Bank of India who have sanctioned credit facilities and gained unlawfully at the cost of the banker's funds and will constitute cognizable offences under IPC. In the aforesaid manner, the above named borrower, and guarantors and related parties in connivance and criminal conspiracy with one another with dishonest intention of causing wrongful loss to lending banks and for wrongful gain to themselves, fraudulently committed the act of cheating (Section 420 of IPC) and Criminal Breach of trust (Section 409 of IPC) read with S.120-B and offence under S.467 IPC and S468 IPC forgery of valuable security and forgery for cheating and other provisions of the Indian Penal Code, 1860 and the said acts resulted in grave financial misconduct. A thorough investigation by your office would detect the complete details about the aforesaid circuitous transactions and the criminal conspiracy involved therein. The roles of Chartered Accountant, Statutory Auditors, Stock Auditors, and Empanelled Valuers, unknown persons and public servants and other persons, etc. may also be investigated. We undertake to provide the necessary permission u/s.17A of the Prevention of Corruption Act, 1988 as and when required by the investigating authority. Involvement of unknown persons and public servants may also be examined during investigation.



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9	Grave irregularities committed by Public servant	Involvement of unknown persons and public servants may also be examined during investigation. SAR is dealt with but not closed.
10	Role of common conspirator	Mr.Kiran.P.P(Managing Partner), Mr.Ajay Mohan, Mr.Deepak Dharmapalan and Mr.Augustine Chandy The abovementioned partners/guarantors are directly connected with operations of the firm and are responsible for the acts of fraud detailed above. They have conspired and diverted the funds, thereby defrauding Bank of India
11	The names and addresses of the prosecution witness	Complainant :Sri.Pramod.T.B, Chief Manager , Bank Of India, Ernakulam Branch, 1 st Floor, Alliance Residency, Shanmugham Road, Menaka, Marine Drive, Ernakulam , Kerala-682031
12	Action taken by the bank against public servant(s) including departmental proceedings initiated if so, details thereof	Staff Accountability report is dealt with and not closed; disciplinary action is initiated against the erring officials However, we request you to investigate the role of unknown public servants, if any. We undertake to provide the necessary permission u/s.17A of the Prevention of Corruption Act, 1988 as and when required by the investigating authority.
13	Whether investigation conducted by bank, if yes, details of the major findings	<u>Yes. Major Findings in the Internal Investigation conducted by the Vigilance Dept. of the Bank:-</u> The firm had removed all the machineries without Bank's permission, as reported in one of the inspection report. In addition to the limits availed from Bank of India, Ernakulam MCB and South Indian Bank Ltd., Ayyanthole Branch, it is alleged that Mr. Kiran.P.P. is also enjoying credit facilities with Canara Bank, ARM at Ernakulam South Jn. Canara Bank verbally confirmed that Mr. Kiran P. P. had availed loans with them during the period 2015-16 and the



		account/s have slipped into NPA in the year 2017. However, Canara Bank has not given any written communication sharing the said information eventhough the same was sought by us in writing. The plant and machinery was proposed to be purchased from M/s.GV Optic Solution (GV) ,M/s.Bright Cell Electronics & Communications (Bright) vide the sanctioned proposal dtd.30.06.2015. As per the internal investigation conducted by the vigilance Dept. of the Bank, it transpired that the borrowers have resorted to diversion of funds which were remitted to the supplier M/s Cabletron Systems wherein the proprietor Mr.Dharman. E.K. confirmed vide email dated 18.02.2022, that the funds received from Bank of India was transferred to the account of M/s Prakash Engineering. It is to be noted that Mr. Deepak Dharmapalan (partner of the firm in M/s Catrix) is the proprietor of the firm M/s Prakash Engineering. Mr.Dharman had also shared his firm's TIN No.32080595325 and that the firm M/s.Catrx Luminants & Solar Systems had cheated him. It is also alleged that the amount received into the current account of the firm was accommodative in nature just to show that capital has been infused by the borrower / firm. M/s.G.V.Sukumar, Chartered accountants have certified that M/s.Catrx Luminants & Solar Systems have infused Rs.1,70,02,700/- as capital till 20.11.2015 vide their certificate dtd.21.11.2015 .The major portion of capital infusion is towards advance for suppliers for Plant & machineries amounting to Rs.1,60,50,000/-The
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	remaining amount is towards security deposit of factory rent at Kalamassery, Electricity Deposit and preliminary & pre-operative expenses. Some payments were made to the suppliers from the current account of the firm bearing A/c.No.851820110000041 of which Rs.25 lakhs was remitted to M/s.Cabletron Systems on 28.10.2015 and Rs.19 lakhs and Rs.15 lakhs was remitted to M/s.GV Optic Solution on 28.10.2015 and 29.10.2015 totalling Rs.59,00,000/-.These amounts were remitted from the inward remittances received in the current account totaling Rs.68,99,937/-from M/s.Digital Sign Networks (Rs.59 lakhs) on 27.10.2015, 28.10.2015 and 29.10.2015 and from M/s.HRJ Refrigeration (Rs.9.99 lakhs) on 23.11.2015.It is transpired from the statement of account of M/s.Cabletron Systems with the Federal Bank that the funds received by them on 28.10.2015 from BOI, Ernakulam Branch amounting to Rs.25 lakhs was immediately transferred on the same day by way of RTGS to M/s.Digital Sign Networks .Thus this transaction is only a camouflaged entry shown by the firm only to reflect that fund infusion has taken place. The real fact is that the amount has been transferred to the account from where it has been received. Hence the transaction is found to be accommodative in nature. A letter dated 22.06.2015 received from M/s.Catrix Luminants & Solar Systems duly signed by Mr.Kiran.P.P reveals that M/s.Digital Sign Networks is a unit of Kerala Cable Federation providing digital signal distribution and Mr.Kiran.P.P is the secretary of Kerala Cable Federation
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Classification: Internal



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		(Thrissur Dist.). In the inspection conducted by the bank officials, it is transpired that, the firm has eroded machineries without Bank's permission, which shows that the firm has cheated the Bank. It appears that the firm has not purchased the machinery as shown on records. Moreover, from the Term Loan, Rs.30.22 lacs disbursed to a proprietary concern ie, M/s.Fly on Cables owned by the proprietor Mr.Kiran.P.P (who is the managing Partner of M/s.Catrix Luminants & Solar Systems), which shows the intention of the borrowers to cheat the Bank. It is noticed that an amount of Rs.30,21,750 was disbursed from Term Loan account and payment made to M/s.Prakash Engineering on 25.11.2015 where Mr.Deepak Dharmapalan is the proprietor of the said firm and also is standing as a partner/guarantor in M/s.Catrix Luminants & Solar Systems too. Upon search of TIN Nos. of suppliers (as mentioned in invoices) from Kerala Commercial Tax website (KVAT :TIN checking (Kerala.gov.in) , it is revealed that TIN No.32080995412 of the supplier M/s.Mactone Steel Industries and TIN No.32080593197 of the supplier M/s.Cabletron Systems does not exist in the said website .It appears that the TIN numbers in the invoices submitted by the suppliers are fabricated .It is also noticed that there is no mention of TIN number in the quotations submitted by these suppliers. Mr.Dharman , proprietor of M/s Cabletron Systems vide his e-mail dtd.18.02.2002 confirmed to the Bank's vigilance Dept that one quotation signed by him was issued and invoice
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	was not issued by them. He further confirmed having received an amount of Rs.1,10,15,200/- from Bank Of India, Ernakulam Branch into his firm's account on 25.11.2015. He stated that the said amount was remitted by way of RTGS on the next day ie, on 26.11.2015 to M/s.Prakash Engineering at the request of M/s.Catrix Luminants and Solar Systems. He had also quoted his firm's correct TIN number which is 32080995325 and stated that M/s.Catrix Luminants and Solar Systems had cheated them. The said TIN is matching in the website of Kerala Commercial Taxes. The supplier M/s.Cabletron Systems had not made any delivery of material/goods worth Rs.1.10 cr. It is also noticed that registration status of TIN 32081068978 pertaining to M/s.Prakash Engineering & Technology was subsequently cancelled. It is clearly evident that the borrowers have cheated the Bank by producing fake quotations and invoices and diverted the funds. In view of the above, the borrowers have cheated the Bank by not utilizing the funds for the purpose for which the loan was sanctioned and instead diverted the funds. They have also concealed the information in respect of credit exposure they were enjoying with other Banks. The aforesaid acts of the borrowers amount to criminal breach of trust punishable under Section 409 of the Indian penal Code and the said acts resulted in grave financial misconduct which amounts to cheating punishable under Section 420 IPC read with Section 34 of IPC. From the above, it is clear that the borrowers have acted in a fraudulent way to cheat the Bank and it is a clear cut case of
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		siphoning of funds. The borrowers have diverted & siphoned off funds borrowed from bank and utilized the same for the purpose other than for which they had availed the loan facility. Hence the account is recommended for treating as Fraud and the competent authority of the Bank declared the account as fraud on 30.03.2022. The aforesaid acts of the borrower/s is a criminal breach of trust punishable under Section 409 of the Indian penal Code and also offence under S.467 IPC and S.468 IPC forgery of valuable security and forgery for cheating and the said acts resulted in grave financial misconduct which amounts to cheating punishable under Section 420 IPC read with Section 120-B IPC and 34 of IPC.
14	Availability of original document(s)	Since suit is filed with the DRT-1 Ernakulam (OA No.331/2018), the Security documents and our original proposals are filed with the Hon'ble DRT-1 Ernakulam which can be produced as and when required with the permission of the Hon'ble DRT.
15	Whether accused persons were involved in any other fraud in the bank on an earlier occasion	The same firm has availed loan from the South Indian Bank against the same hypothecated assets, before availing loan from Bank of India and the said account with the South Indian Bank is also NPA.
16	Whether the fraud has interstate, International ramification. If yes, give the details.	No, as per available record with us



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Bank of India

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17	Whether registration is authorized by CVO of the bank.	The complaint is approved by the Competent Authority of Bank and as per bank's guidelines considering the amount involved in the matter, authorization of CVO is not necessary in this matter.
18	Role of unknown public servant	Involvement of unknown public servant may also be examined during investigation. We undertake to provide the necessary permission u/s.17A of the Prevention of Corruption Act, 1988 as and when required by the investigating authority.
19	Signature of the complainant with seal and date.	कृते बैंक ऑफ़ इंडिया / For BANK OF INDIA  (PRAMOD.T.B.) प्रमुख / Chief Manager एरनाकुलम शाखा / Ernakulam Branch

Place: Ernakulam
Date: 12.01.2023



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8	Legal facts constituting cognizable offence have specific mention	Yes	As per para nos. 6,7 & 9 of the complaint
9	Name(S) and role of erring bank officials as per the SAR is/are clearly mentioned	No	As per para 12 of the complaint
10	Findings of Forensic audit report, if conducted, and internal investigation Report are duly incorporated	Yes	Internal investigation report
11	Details of crime proceeds/end use of funds as per the findings of forensic audit are mentioned	No	
12	In case of uncertainty about the criminality on the part of bank officials the bank has mentioned allegations against unknown public servants	Yes	
13	Role of CA, Statutory Auditors, Stock Auditors and empanelled values etc.	Yes	As per para no 9 of the complaint
	If any are mentioned with their license no., name, contact details etc.		
14	Availability of relevant original documents and their safe custody with the bank is mentioned		As per para no 14 of the complaint
15	Details of Associates/ Sister Companies including any other	Yes	Mr.Augustine Chandy, one of the partners in M/s.Catrix

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	information such as their bank exposure etc.		Luminants and Solar Systems is also a partner in M/s. Grand Constructions which is also an NPA account with our Bank (in the erstwhile MCB Branch and presently with Ernakulam Branch)
16	The bank has ensured that there is no contradiction in the complaints as to whether it is an act of crime or a business loss	Yes	It is a crime as per the provisions of the Indian Penal Code as per para 6,7,8 & 13 of the complaint.
17	In case of Consortium, Whether complaint lodge by all banks or lead banks	NA	
18	Whether bank filed any case in NCLT against the entity/directors	NA	The firm is a partnership firm
19	Details of moveable/ immoveable properties	Yes	As per para no 6 of the complaint
20	Whether any foreign currency transactions by account holders	No	
21	All bank account details of the entity with outstanding balance and current status	Yes	As per para no.6 of the complaint
22	CIN/Registration details of entity (ies)/ Associated and group Companies	NA	



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23	PAN/DIN/ Passport details of Directors/promoters/partners/key management personal	Yes	As per para no. 6 of the complaint
24	Action taken by others law enforcement Agencies, Charge Sheet, Court Orders (if any)	No	





GOVERNMENT OF KERALA

No.M3/205/2024/HOME

Home (M) Department
25-03-2025, Thiruvananthapuram

From

The Additional Chief Secretary to Government

To

The The Superintendent & Head of Branch,
Central Bureau of Investigation,
Anti Corruption Branch,
Kathrikkadavu, Kaloore P O, Cochin 682017.



Sir,

Sub: Home Department - Request for according consent to CBI -
ACB, Cochin u/s.6 DSPE Act, 1946 for registering a Regular
Case and conducting investigation against Shri Mahfoose M.D,
and unknown public servants and others - reg.

Ref: 1. Your letter No. DPCHN2024/RA0332024A0003/277 dated
20.06.2024.

2. Notification issued under G.O.(Ms.) No.59/2025/HOME
dated 23.03.2025, published as SRO No.315/2025.

I am to forward herewith a copy of the Gazette Notification referred
above for your information and further necessary action.

Yours Faithfully,

SYAM T K

DEPUTY SECRETARY

For Additional Chief Secretary to Government.

Approved for Issue,

Signed by

Reji K.p

Date: 25-03-2025 15:11:50
Section Officer.



കേരള ഗസറ്റ് KERALA GAZETTE

അസാധാരണം
EXTRAORDINARY

ആധികാരികമായി പ്രസിദ്ധപ്പെടുത്തുന്നത്
PUBLISHED BY AUTHORITY

വാല്യം 14 Vol. XIV	തിരുവനന്തപുരം, തിങ്കൾ Thiruvananthapuram, Monday	2025 മാർച്ച് 24 24th March 2025 1200 മീനം 10 10th Meenam 1200 1947 ചൈത്രം 3 3rd Chaithra 1947	നമ്പർ No.	1123
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GOVERNMENT OF KERALA

Home (M) Department

NOTIFICATION

G.O.(Ms.) No. 59/2025/HOME

Dated, Thiruvananthapuram, 23rd March, 2025

S. R. O. No. 315/2025

In exercise of the powers conferred by section 6 of the Delhi Special Police Establishment Act, 1946 (Central Act 25 of 1946), the Government of Kerala hereby accord consent to the members of the Delhi Special Police Establishment to exercise powers and jurisdiction in the whole state of Kerala for the investigation of offences punishable under section 120 B read with sections 420,468,471 and 406 of the Indian Penal Code,1860 (Central Act 45 of 1860) and sub section (2) read with clause (a) of sub section (1) of section 13 of the Prevention of Corruption Act, 1988 (Central Act 49 of 1988) as it stood prior to the commencement of the Prevention of Corruption (Amendment) Act, 2018 (Central Act 16 of

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2018) against Shri Mahfoose M.D, and unknown public servants and others, if any, for commission of offences punishable under the said Acts and any other offences committed in the course of transaction arising out of the same fact, in regard to this case, within the whole State of Kerala.

By order of the Governor,

DISHWANATH SINHA,
Additional Chief Secretary to Government.

Explanatory Note

(This does not form part of the notification, but is intended to indicate its general purport.)

The Central Bureau of Investigation, Anti-Corruption Branch, Cochin have requested the Government of Kerala to accord consent under section 6 of the Delhi Special Police Establishment Act, 1946 (Central Act 25 of 1946) for the investigation of alleged commission of offences under section 120 B read with sections 420,468,471 and 406 of the Indian Penal Code,1860 (Central Act 45 of 1860) and sub section (2) read with clause (a) of sub section (1) of section 13 of the Prevention of Corruption Act, 1988 (Central Act 49 of 1988) as it stood prior to the commencement of the Prevention of Corruption (Amendment) Act, 2018 (Central Act 16 of 2018) against Shri Mahfoose M D. and unknown public servants and others. Government have examined the matter in detail and have decided to accord consent under section 6 of the Delhi Special Police Establishment Act,1946 (Central Act 25 of 1946) to the Delhi Police Establishment for the same.

The notification is intended to achieve the above object.



Dated...28.8.25

[TO BE PUBLISHED IN THE GAZETTE OF INDIA, PART II, SECTION 3, SUB-SECTION (ii)]

GOVERNMENT OF INDIA

MINISTRY OF PERSONNEL, PUBLIC GRIEVANCES AND PENSIONS

(DEPARTMENT OF PERSONNEL AND TRAINING)

NEW DELHI

No. 717/NSMC/2025

dt-28/08/2025

NOTIFICATION

Dated the 27th August 2025

S.O. — In exercise of the powers conferred by sub-section (1) of section 5 read with section 6 of the Delhi Special Police Establishment Act, 1946 (Central Act 25 of 1946), the Central Government with the consent of the State Government of Kerala, issued vide Notification No. G.O.(Ms.) No. 43/2025/HOME, dated 02.03.2025, Home (M) Department, Thiruvananthapuram (S.R.O. No. 239/2025), hereby extends the powers and jurisdiction of the members of the Delhi Special Police Establishment in the whole State of Kerala for investigation of offences punishable under section 120B read with sections 420 and 468, 471 read with sections 468, 406 and 409 of Indian Penal Code and sub section (2) of Section 13 read with clause (c) of sub section (1) of section 13 & clause (d) of sub section (1) of section 13 of Prevention of Corruption Act, 1988 and substantive offences thereof against Shri Kiran P. P., Managing Partner, M/s Catrux Luminants & Solar Systems, Shri Ajay Mohan, Shri Deepak Dharmapalan and Shri Augustine Chandy Partners of M/s Catrux Luminants & Solar systems, and unknown public servants and others, if any, for commission of offences punishable under the said Acts and any other offense committed in the course of transaction arising out of the same fact, in regard to this case, within the whole State of Kerala.

[F. No. 228/64/2025-AVD-II]

(Satyam Srivastava)

Under Secretary to the Government of India

To,

The Manager,
Govt. of India Press,
Mayapuri, Ring Road,
New Delhi-110064

F. No. 228/64/2025-AVD-II

New Delhi dated: 27.08.2025

Copy to

- (i) The Chief Secretary, Government of Kerala, Govt. Secretariat, Thiruvananthapuram, Kerala-695001.
- (ii) The Director, Central Bureau of Investigation (CBI), CGO Complex, New Delhi.
- (iii) Director of Prosecution, CBI, CGO complex, New Delhi.
- (iv) NSMC, Room No. 10, 9th Floor, DoP, CBI, CGO Complex, New Delhi-110003.

(Satyam Srivastava)

Under Secretary to the Government of India